

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ariana Thomas	Team: Squad #16	CCRB Case #: 202305267	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 06/07/2023 12:45 AM	Location of Incident: Fteley Avenue between Gleason Avenue and Watson Avenue	18 Mo. SOL 12/7/2024	Precinct: 43		
Date/Time CV Reported Thu, 06/08/2023 1:17 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 06/08/2023 1:17 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Justin Bauman	08291	965946	043 PCT
2. PO Edgar Santos	22843	970186	043 PCT
3. SGT Carlos Herrera	04176	952847	043 PCT
4. PO Mia Martin	15223	967988	043 PCT
5. Officers			

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Abuse: On June 07, 2023, at 1157 Fteley Avenue in the Bronx, Officers stopped the vehicle in which § 87(2)(b) was an occupant.	A . Within NYPD Guidelines
B . PO Justin Bauman	Abuse: Police Officer Justin Bauman threatened § 87(2)(b) with the use of force.	B . Within NYPD Guidelines
C . PO Justin Bauman	Force: Police Officer Justin Bauman used physical force against § 87(2)(b)	C . Unfounded
D . SGT Carlos Herrera	Abuse: Sergeant Carlos Herrera interfered with § 87(2)(b) use of a recording device.	D . Substantiated
E . PO Mia Martin	Abuse: Police Officer Mia Martin interfered with § 87(2)(b) use of a recording device.	E . Substantiated
F . SGT Carlos Herrera	Abuse: Sergeant Carlos Herrera threatened to arrest § 87(2)(b)	F . Substantiated
G . SGT Carlos Herrera	Discourtesy: Sergeant Carlos Herrera spoke discourteously to § 87(2)(b)	G . Substantiated
H . PO Justin Bauman	Abuse: Police Officer Justin Bauman questioned § 87(2)(b)	H . Within NYPD Guidelines
I . PO Edgar Santos	Abuse: Police Officer Edgar Santos searched the vehicle in which § 87(2)(b) was an occupant.	I . Substantiated
J . PO Mia Martin	Discourtesy: Police Officer Mia Martin spoke discourteously to § 87(2)(b)	J . Substantiated
K . PO Justin Bauman	Discourtesy: Police Officer Justin Bauman spoke discourteously to § 87(2)(b)	K . Substantiated
L . SGT Carlos Herrera	Force: Sergeant Carlos Herrera used physical force against § 87(2)(b)	L . Unfounded
M . PO Edgar Santos	Abuse: Police Officer Edgar Santos failed to provide § 87(2)(b) with a business card.	M . Substantiated

Case Summary

On June 8, 2023, § 87(2)(b) filed this complaint via the CCRB's Call Processing System.

On June 7, 2023, at approximately 12:45 a.m., Police Officer Justin Bauman, Police Officer Edgar Santos, Police Officer Mia Martin, and Sergeant Carlos Herrera, all of the 43rd Precinct, stopped § 87(2)(b) vehicle in the vicinity of Fteley Avenue between Gleason Avenue and Watson Avenue in the Bronx (**Allegation A: Abuse of Authority, Within NYPD Guidelines**). PO Bauman ordered § 87(2)(b) to exit the vehicle and threatened to pull him out if he refused (**Allegation B: Abuse of Authority, Within NYPD Guidelines**). PO Bauman allegedly pulled § 87(2)(b) arm (**Allegation C: Force, Unfounded**). Sgt. Herrera and PO Martin ordered § 87(2)(b) to put his cellphone, which was recording, down and removed it from him (**Allegations D-E: Abuse of Authority, Substantiated**). Sgt. Herrera threatened to arrest § 87(2)(b) (**Allegation F: Abuse of Authority, Substantiated**). Sgt. Herrera told § 87(2)(b) he was being an "asshole," and that the officers had more important "shit to do" (**Allegation G: Discourtesy, Substantiated**). PO Bauman asked § 87(2)(b) if he had anything inside his vehicle (**Allegation H: Abuse of Authority, Within NYPD Guidelines**). PO Santos searched § 87(2)(b) vehicle (**Allegation I: Abuse of Authority, Substantiated**). PO Martin told § 87(2)(b) to "put the fucking phone away," and PO Bauman told § 87(2)(b) that he was "doing all this extra shit" (**Allegations J-K: Discourtesy, Substantiated**). Sgt. Herrera allegedly pulled on § 87(2)(b) handcuffs (**Allegation L: Force, Unfounded**). PO Santos failed to provide § 87(2)(b) with a business card (**Allegation M: Abuse of Authority, Substantiated**). No arrest or summons resulted from this incident.

This case was originally assigned to Supervising Investigator Jessica Russo and was reassigned to Investigator Ariana Thomas.

The investigation received five body-worn camera ("BWC") videos and one dash camera video from the NYPD Legal Bureau (**Board Review 01-06**) and cellphone video from § 87(2)(b) (**Board Review 07**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Officers stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation (B) Abuse of Authority: Police Officer Justin Bauman threatened § 87(2)(b) with the use of force.

Allegation (C) Force: Police Officer Justin Bauman used physical force against § 87(2)(b)
§ 87(2)(b) testified that, on June 7, 2023, at approximately 12:45 a.m., he was driving his black Toyota Camry, which has tinted windows, home from work (**Board Review 08**). While driving on Westchester Avenue and Morrison Avenue, § 87(2)(b) observed an unmarked black vehicle stopped at a red light on the opposite side of the street. He continued driving and the officers made a U-turn, following behind § 87(2)(b). When he reached Gleason Avenue, the officers activated their lights, signaling for him to pull over. § 87(2)(b) pulled over on Fteley Avenue and Sgt. Herrera, PO Bauman, PO Santos, and PO Martin exited the vehicle. PO Bauman approached the driver's side, PO Santos approached the passenger's side, and Sgt. Herrera and PO Martin remained at the rear of his vehicle. § 87(2)(b) lowered his windows. PO Bauman ordered § 87(2)(b) to produce his license and registration. § 87(2)(b) asked why he was stopped. PO Bauman said he had tinted windows and that his center taillight was out. § 87(2)(b) was unaware of his taillight issue but acknowledged that it was not working after the stop concluded. PO Bauman asked for § 87(2)(b) license and registration approximately two additional times. § 87(2)(b) began recording on his phone and opened his glove compartment. As he was reaching for his registration, PO Bauman opened § 87(2)(b) door from the outside and told him to step out of the vehicle. PO Bauman told § 87(2)(b) to step out an additional two or three times, stating that he could step out or he would have to remove him. § 87(2)(b) did not move. PO Bauman reached into the vehicle, unbuckled § 87(2)(b)

§ 87(2)(b) seatbelt, and began pulling § 87(2)(b) left forearm with his two hands. § 87(2)(b) then stepped out of the vehicle.

In PO Bauman's BWC video (**Board Review 01**), at 01:00, PO Bauman approaches the driver's side of § 87(2)(b) vehicle which has visible tinted windows all around, as Sgt. Herrera approaches the passenger's side. PO Bauman orders § 87(2)(b) to lower his windows. He complies. At 01:09, § 87(2)(b) license plate does not appear to have a light illuminating it (**Board Review 31**). At 01:20, PO Bauman orders § 87(2)(b) to produce his license and registration. § 87(2)(b) asks why the officers stopped him. PO Bauman asks for license and registration again. § 87(2)(b) asks, again, why the officers stopped him. PO Bauman says he has tinted windows and no license plate light. At 01:32, PO Bauman tells § 87(2)(b) "License and registration or we're going to pull you out of the car." § 87(2)(b) pauses and then reaches for his glove compartment, which he opens. Almost simultaneously, PO Bauman tells him to step out of the vehicle. At 01:40, PO Bauman opens the driver's door and orders § 87(2)(b) to step out multiple times. § 87(2)(b) says that he will provide the documents and begins recording. The officers tell him he can record. § 87(2)(b) points the camera at the officers. At 01:57, PO Bauman says, "Step out the vehicle or we're gonna remove you." At 02:05, PO Bauman reaches into the vehicle to unbuckle § 87(2)(b) seatbelt, pulls on the seatbelt, and orders him to step out. § 87(2)(b) exits the vehicle on his own and walks to the rear. At 02:14, PO Santos orders § 87(2)(b) to produce his license and registration.

PO Bauman's testimony was consistent with the BWC video (**Board Review 09**). He testified that he was driving the police vehicle when he observed § 87(2)(b) vehicle, which had ineffective license plate lamps and window tints. PO Bauman did not recall whose decision it was to stop the vehicle. He determined the tint levels to be under the legal 70% limit for New York State based on the visibility as well as his training and experience. § 87(2)(b) did not comply with the officers' multiple requests to produce his license and registration. For everyone's safety, PO Bauman wanted to identify § 87(2)(b) and speak to him at the back of his vehicle, as § 87(2)(b) had been moving around slightly inside his vehicle. § 87(2)(b) was "taking a while," to step out after several requests to do so. PO Bauman opened the door and officers pulled him out of the vehicle for their safety and his. Officers helped direct § 87(2)(b) to the rear of the vehicle to identify him, the vehicle, and registration.

Sgt. Herrera (**Board Review 10, 11**), PO Santos (**Board Review 12**), and PO Martin (**Board Review 13**) consistently testified that they stopped § 87(2)(b) because his car had tinted windows and no light illuminating his license plate. Sgt. Herrera and PO Martin testified that the officers collectively decided to stop § 87(2)(b) while PO Santos testified that he did not know who made the decision.

An automobile stop is lawful when an officer has probable cause to believe that an individual has violated the Vehicle and Traffic Law. People v. Robinson, 97 N.Y.2d 341 (**Board Review 14**). New York State Vehicle and Traffic Law § 375 requires that a white light illuminate the numerals on a rear license plate such that the numerals are legible from a 50-foot distance and states that no person shall operate any motor vehicle upon any public highway, road, or street where the side windows on either side of the vehicle are composed of, covered by, or treated with any material which has a light transmittance of less than seventy percent (**Board Review 15**).

It is undisputed that the light above § 87(2)(b) rear license plate was not working and that his vehicle had window tints. § 87(2)(g)

§ 87(2)(b) is therefore recommended that **Allegation A** be closed as **Within NYPD Guidelines**.

Officers can exercise their discretion to require a driver who commits a traffic violation to exit their vehicle. People v. Robinson, 74 N.Y.2d 773 (**Board Review 16**).

Officers may use physical force if it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. When appropriate and consistent with personal safety, members of the service will use de-escalation techniques to safely gain compliance from a subject to reduce or eliminate the necessity to use force. In all circumstances, any application or use of force must be reasonable under the circumstances. NYPD Patrol Guide, Procedure 221-01 (**Board Review 17**).

§ 87(2)(b) acknowledged that he refused to comply with PO Bauman's multiple orders to exit his vehicle, which the video evidence and officer testimony supports. While § 87(2)(b) alleged that PO Bauman pulled him by his forearms, the video evidence disputes this, as it captures PO Bauman unbuckling § 87(2)(b) seatbelt and pulling on that briefly. § 87(2)(g)

It is therefore recommended that **Allegation B** be closed as **Within NYPD Guidelines**. As PO Bauman did not pull § 87(2)(b) by his forearms, as alleged, it is recommended that **Allegation C** be closed as **Unfounded**.

Allegation (D) Abuse of Authority: Sergeant Carlos Herrera interfered with § 87(2)(b) use of a recording device.

Allegation (E) Abuse of Authority: Police Officer Mia Martin interfered with § 87(2)(b) use of a recording device.

Allegation (F) Abuse of Authority: Sergeant Carlos Herrera threatened to arrest § 87(2)(b)

Allegation (G) Discourtesy: Sergeant Carlos Herrera spoke discourteously to § 87(2)(b)

Allegation (H) Abuse of Authority: Police Officer Justin Bauman questioned § 87(2)(b)

Allegation (I) Abuse of Authority: Police Officer Edgar Santos searched the vehicle in which § 87(2)(b) was an occupant.

Allegation (J) Discourtesy: Police Officer Mia Martin spoke discourteously to § 87(2)(b)

Allegation (K) Discourtesy: Police Officer Justin Bauman spoke discourteously to § 87(2)(b)

Allegation (L) Force: Sergeant Carlos Herrera used physical force against § 87(2)(b)

Allegation (M) Abuse of Authority: Police Officer Edgar Santos failed to provide § 87(2)(b) with a business card.

§ 87(2)(b) testified that at the rear of his vehicle, he continued recording the officers, holding his phone upright. § 87(2)(b) asked why they removed him from the vehicle and PO Bauman stated that they asked him for his documents multiple times, and it took him five seconds to start providing it. § 87(2)(b) provided Sgt. Herrera with his ID. As § 87(2)(b) recorded from right to left, moving his phone closer to Sgt. Herrera, Sgt. Herrera grabbed § 87(2)(b) phone and told § 87(2)(b) that he could not record. As a result, § 87(2)(b) phone fell to the ground, absent any damage. Sgt. Herrera told him that he could record if his phone was in his pocket. When he reached to pick it up, PO Bauman asked § 87(2)(b) if he wanted to be arrested, and handcuffed him. PO Martin picked up the phone from the ground, turned off the recording, and placed it on the trunk of the vehicle. Sgt. Herrera handed § 87(2)(b) ID to PO Martin. None of the officers searched § 87(2)(b) or his vehicle. PO Bauman told § 87(2)(b) he was free to go, without issuing him any summonses. When removing his handcuffs, Sgt. Herrera pulled the handcuffs toward himself, which caused the cuffs to tighten and subsequently cause pain to § 87(2)(b) wrists. He provided a photograph showing a bruise on his wrist (**Board Review 18**). PO Bauman offered a business card, which § 87(2)(b) accepted. § 87(2)(b) then left the scene.

In PO Bauman's BWC video (**Board Review 01**), at 02:20, § 87(2)(b) records the officers with his cellphone, as he stands at the rear of his vehicle. At 02:34, as § 87(2)(b) records PO Bauman, Sgt. Herrera grabs § 87(2)(b) cellphone and orders him to put it away. § 87(2)(b) holds onto his phone and pulls away. At 02:39, PO Santos holds § 87(2)(b) arms while Sgt. Herrera removes the phone from his hands and hands it to PO Martin, who places it on the back of § 87(2)(b) vehicle. She does not appear to touch the phone screen. At 02:48, Sgt. Herrera asks § 87(2)(b) why he is acting like that and says, "You want to be in cuffs? You want to go to jail?" Sgt. Herrera asks for § 87(2)(b) license, which he provides. At 03:05, Sgt. Herrera says, "Don't you ever touch a cop like that... you're gonna be in cuffs." At 03:20, Sgt. Herrera tells § 87(2)(b) that the officers approached him politely and that he is "being like an asshole." At 04:14, PO Bauman asks § 87(2)(b) if he has something in the car. § 87(2)(b) says, "Nah, you could check." At 04:20, PO Santos enters the driver's side of § 87(2)(b) vehicle. At 04:30, § 87(2)(b) approaches the vehicle and says, "He cannot touch my car," and says he knows his rights. The officers all say he gave consent. At 04:38, § 87(2)(b) picks up his phone. PO Martin and Sgt. Herrera order him to put it away. At 4:45, PO Martin tries to remove the phone from his hand, while he holds it in his grip. PO Martin tells § 87(2)(b) "I'm not going to ask you again. Put the fucking phone away." At 04:50, the officers handcuff § 87(2)(b). At 05:10, PO Bauman tells § 87(2)(b) he is, "doing all this extra shit for nothing." § 87(2)(b) says the officers are in the wrong. At 05:31, PO Bauman says that § 87(2)(b) gave consent to search his vehicle. § 87(2)(b) says that he does not want PO Santos to put something inside his car. The officers run § 87(2)(b) information and discuss the circumstances of the stop with § 87(2)(b). At 09:20, Sgt. Herrera tells § 87(2)(b) to comply next time because, "there is more important shit to do outside." At 10:00, PO Bauman uncuffs § 87(2)(b) and does not appear to pull his arms or tighten his handcuffs. Sgt. Herrera does not make any physical contact with him. At 10:30, PO Bauman offers § 87(2)(b) a business card and he takes it. The officers return to their vehicle.

PO Santos' BWC video (**Board Review 03**) more clearly captures the vehicle search. At 04:15, § 87(2)(b) tells the officers they can check his vehicle. At 04:17, PO Santos looks under the driver's seat of § 87(2)(b) vehicle with his flashlight. He then appears to search the center console. At 04:31, § 87(2)(b) says something about knowing his rights regarding the vehicle search. PO Santos says, "You literally just said, 'you could check,' so stop going back and forth." At 04:42, PO Santos opens the rear door on the driver's side. He looks inside the door and over the seat until 04:45, when the officers are struggling to remove § 87(2)(b) phone. At 05:06, PO Santos places the phone on the driver's seat and searches the rear of the vehicle. At 05:26, PO Santos opens the passenger door. § 87(2)(b) is heard saying that he does not want PO Santos putting anything in his car. PO Santos tells him everything is recorded and searches the open glove compartment. At 05:42, PO Santos opens the rear door on the passenger side and searches under the seats. At 06:00, PO Santos looks under the front passenger's seat and searches the glove compartment again.

Cellphone video, which is 53-seconds long, is consistent with the BWC video (**Board Review 07**). At 00:43, Sgt. Herrera orders § 87(2)(b) to put his phone away and there appears to be a struggle for the phone and the video ends during this struggle.

Sgt. Herrera's testimony was generally consistent with the BWC footage (**Board Review 10, 11**). He testified that when § 87(2)(b) stepped out of the vehicle, he decided he would be placed under arrest for failing to produce his license. As § 87(2)(b) stood behind his vehicle, Sgt. Herrera told him he was going to jail for that reason. As § 87(2)(b) was very evasive, was not listening to the officers, and failed to provide his driver's license, Sgt. Herrera asked him why he was acting like an "asshole," but denied ever calling him an asshole. Sgt. Herrera likened the interaction to telling a small child to act or not act a certain way and used that word because § 87(2)(b) was not listening. He never frisked § 87(2)(b) and did not know what was in the car, so due to § 87(2)(b)

uncooperative behavior, Sgt. Herrera believed that § 87(2)(b) had something in the car. Sgt. Herrera stated civilians are allowed to record during a vehicle stop and § 87(2)(b) was allowed to record up until the moment he decided § 87(2)(b) was under arrest. Sgt. Herrera grabbed § 87(2)(b) hands and § 87(2)(b) grabbed Sgt. Herrera's right hand, as another officer pulled § 87(2)(b) phone away from him. Sgt. Herrera made the determination to place § 87(2)(b) under arrest when he failed to produce the identification. However, once Sgt. Herrera informed § 87(2)(b) he would be arrested, § 87(2)(b) produced his driver's license. § 87(2)(b) could have been arrested for failure to provide his license, placing his hands on an officer, and obstruction of governmental administration. Since § 87(2)(b) followed behind one of the officers as they walked towards his vehicle, Sgt. Herrera decided to handcuff § 87(2)(b) for everyone's safety, as he did not know what § 87(2)(b) had in the vehicle. Since § 87(2)(b) provided the officers with consent to search his car, a consent to search form was prepared by one of the officers. The driver is required to sign this form, though did not know if § 87(2)(b) did. Sgt. Herrera did not recall § 87(2)(b) saying PO Santos could not search the car as he performed the search after initially giving consent. After they verified § 87(2)(b) identity and license plate, the officers collectively decided to warn and admonish him. Sgt. Herrera instructed PO Bauman to produce a business card since the officers had searched the car and § 87(2)(b) was in handcuffs. Sgt. Herrera had already given out his last business card but provided his name and shield number. Sgt. Herrera did not recall using profanity at any point other than saying the word, "asshole." When presented with his BWC video (**Board Review 04**), he denied telling § 87(2)(b) that he had "more important shit to do," but instead said, "shift to do," and denied saying "shit."

PO Bauman's testimony was generally consistent with Sgt. Herrera's and the BWC video (**Board Review 09**). He testified that he did not know why Sgt. Herrera took § 87(2)(b) phone from him, but stated that § 87(2)(b) was getting too close to the officers' faces with it, which caused a safety concern as his phone could have been used as a weapon. PO Bauman asked § 87(2)(b) if there was anything in the car because § 87(2)(b) had been moving around and did not immediately wish to provide his ID. Based on his training experience, those actions sometimes indicate a weapon is in the car. When presented with his BWC video (**Board Review 01**), PO Bauman acknowledged hearing himself say § 87(2)(b) was "...doing lots of extra shit for nothing." He used profanity at this point given the heat of the moment, being under duress, and being a police officer, stating, "When you're on the job you're gonna say things sometimes." The situation was stressful because an individual could have a weapon in the car, and one never knows what is in a car. PO Bauman acknowledged hearing Sgt. Herrera saying the officers had "more important shit to do." There was no issue removing § 87(2)(b) handcuffs and PO Bauman did not recall pulling the handcuffs towards himself.

PO Santos' testimony was generally consistent with the other officers and the BWC video (**Board Review 12**). He testified that once § 87(2)(b) went to the rear of his vehicle, the windows of his vehicle were down, the driver's door and the glove compartment were already open. PO Santos did not cross the plane of the vehicle, as he shined his flashlight towards the car and looked to see if § 87(2)(b) was trying to conceal a weapon. He did not observe anything from outside of the vehicle before § 87(2)(b) subsequently provided consent. PO Santos heard PO Bauman ask § 87(2)(b) if he had anything in the vehicle and § 87(2)(b) reply, "No, you guys could check." PO Santos was unaware of officers needing to take additional steps to obtain consent. A form related to the consent to search was filled out by one of the officers, but PO Santos did not recall if § 87(2)(b) needed to sign it. PO Santos searched the vehicle, starting at the driver's side. As PO Santos shone the flashlight towards the middle and the glove compartment, he recalled looking up, hearing, "Where you going?" and § 87(2)(b) going towards the passenger side of the vehicle. PO Santos proceeded to the passenger side to determine what it was that § 87(2)(b) was possibly going towards, given that he opened the glove compartment.

After saying the officers could search, § 87(2)(b) said, “No, you can’t,” “What is he doing?” and that he did not know if someone was going to put something in the car. Officers are not allowed to continue searching when a civilian revokes consent. However, PO Santos did not interpret this statement as § 87(2)(b) saying he could not search the car, but instead as him thinking PO Santos was going to put something in the vehicle. Nothing indicated to PO Santos that he had to stop searching the car. PO Santos did not recover anything from the car. PO Santos did not give § 87(2)(b) a business card since he did not request one. PO Santos stated that in this scenario where a vehicle search was conducted, he could provide a business card or provide his information. PO Santos noted that he gave § 87(2)(b) his name and shield number multiple times during the vehicle stop. When presented with his own BWC video (**Board Review 03**), PO Santos denied hearing § 87(2)(b) say that PO Santos could not search his car after initially providing consent. He did not know why the officers removed § 87(2)(b) phone and Sgt. Herrera did not tell him why. When presented with PO Bauman’s BWC video (**Board Review 01**), PO Santos was unable to hear Sgt. Herrera say that the officers had “more important shit to do,” and did not independently recall him saying that. Based on the BWC video, PO Santos stated that he did not know if Sgt. Herrera said, “shit,” or “stuff.”

PO Martin’s testimony was generally consistent with the other officers’ and the BWC video (**Board Review 13**). She testified that § 87(2)(b) put his phone in the officers’ faces, and pointed it at their shields, such that he was less than a foot away from the officers, which posed a safety issue. PO Martin told § 87(2)(b) he could record and place the phone on the trunk because he was not paying attention or listening to any of the officers’ commands. She never said he was not allowed to record. According to the Patrol Guide, civilians are allowed to record any interaction with officers so long as they do not hinder the officer’s authority. PO Martin was “more than patient and respectful” with § 87(2)(b) but officers are taught to take steps when dealing with the public. PO Martin gave multiple commands to put his phone down, so she “put a little emphasis” in what she was saying and told him, “Put your fucking phone down.” The officers had to remove § 87(2)(b) phone because the officers were handcuffing § 87(2)(b) and she did not want his phone to drop on the floor. PO Martin took the phone from § 87(2)(b) hand and placed it on the hood of the car. She believed the phone was recording and she did stop the recording. The officers did not tell § 87(2)(b) he was under arrest and only handcuffed him for § 87(2)(b) and the officers’ safety. PO Martin was still in the process of running his information and had not obtained the chance to fully complete her NYSID search on him. When presented with PO Bauman’s BWC video (**Board Review 01**), PO Martin testified that she heard Sgt. Herrera saying the word, “shit.” PO Martin prepared a consent to search form. § 87(2)(b) was not required to sign the form, which documented his verbal consent for police records. The Consent to Search Report (**Board Review 30**), prepared by PO Martin, documents the consent PO Bauman obtained, but does not include § 87(2)(b) name or signature.

Individuals have a right to lawfully observe and/or record police activity including, but not limited to detentions, searches, arrests, or uses of force. The right to observe and/or record police action can be limited for reasons such as the safety of officers or other members of the public, or when a violation of law is committed by the individual(s) who are observing/recording. Officers cannot intentionally prevent, or attempt to prevent, an individual from recording police activities. A civilian can be arrested for obstructing governmental administration (“OGA”) when they use a camera so close to an officer’s face that it intentionally obstructs their view. NYPD Administrative Guide, Procedure 304-21 (**Board Review 19**).

A person is guilty of OGA (a class A misdemeanor), “When he intentionally obstructs, impairs, or perverts the administration of law or other government function or prevents or attempts to prevent a

public servant from performing an official function, by means of intimidation, physical force or interference, or by means of any independently unlawful act.” (**Board Review 20**).

The BWC video confirms that when the officers told § 87(2)(b) to put his phone down, he was standing relatively still at the back of his vehicle and outnumbered by officers § 87(2)(g)

§ 87(2)(g) the BWC footage confirms that § 87(2)(b) did not move towards them nor did any of the officers order him to move back as he recorded.

§ 87(2)(g) the BWC § 87(2)(g) captures PO Martin ordering him to do so prior to the officers initiating handcuffing him. § 87(2)(g)

It is therefore recommended that **Allegations D and E** be closed as **Substantiated**.

Merely refusing to provide driver’s license, registration, and insurance to an officer is not obstructing governmental administration nor an unlawful act. Per New York Vehicle and Traffic Law § 507, it is presumptive evidence that the driver is driving without a license. People v. Alston, 9 Misc. 3d 1046 (**Board Review 32**).

§ 87(2)(g)

it is recommended that **Allegation F** be closed as **Substantiated**.

The common-law right of inquiry is a level of contact between officers and civilians which is activated by founded suspicion that criminality is afoot and permits a greater intrusion than a mere request for information. Officers may ask pointed questions which would lead the person to reasonably believe that he or she is suspected of wrongdoing. New York v. Hollman, 79 N.Y.2d 181 (**Board Review 33**).

The BWC video confirms that while § 87(2)(b) was inside his vehicle, he refused to produce his ID and to comply with the officers’ orders for him to exit the vehicle. Additionally, it captures § 87(2)(b) reaching for the glove compartment but not retrieving anything from it. § 87(2)(g)

It is therefore recommended that **Allegation H** be closed as **Within NYPD Guidelines**.

Officers must render their services with courtesy and civility, and they must maintain a higher standard of integrity than is generally expected of others. NYPD Patrol Guide, Procedure 200-02 (**Board Review 21**). Officers have a responsibility to act with decorum in their interactions with civilians, though there are certain situations where profane remarks made during a stressful or chaotic situation do not constitute misconduct. Disciplinary Court Case No. 2018-18951 (**Board Review 22**).

The BWC footage captures Sgt. Herrera telling § 87(2)(b) he was being an “asshole,” for not complying with the officers’ initial orders. When Sgt. Herrera made this statement, § 87(2)(b) who was standing still at the back of his vehicle and outnumbered by the officers, had just complied with Sgt. Herrera’s order to produce ID. § 87(2)(g)

§ 87(2)(b) Sgt. Herrera said, “shit to do.” The BWC video confirms that when he made this statement, the officers were letting § 87(2)(b) who was standing still at the back of his vehicle and outnumbered by the officers, go. § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegations G** be closed as **Substantiated**.

Though PO Martin testified that she told § 87(2)(b) to “put the fucking phone away,” § 87(2)(g)

§ 87(2)(b) the BWC video confirms that when PO Martin made this statement, the officers were in the process of handcuffing § 87(2)(b) who was not resisting. § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegation J** be closed as **Substantiated**.

The BWC video confirms that when PO Bauman told § 87(2)(b) he was doing, “all this extra shit,” § 87(2)(b) was standing still as he was handcuffed and outnumbered by the officers. § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegation K** be closed as **Substantiated**.

Absent probable cause, it is unlawful for a police officer to invade the interior of a stopped vehicle once the suspects have been removed from said vehicle without incident and any immediate threat to safety is eliminated. A further intrusion might be justified in the absence of probable cause if the likelihood of a weapon in the vehicle is substantial and the danger to the officer’s safety actual and specific. People v. Carey, 89 N.Y.2d 707 (**Board Review 23**).

One of the limited exceptions to the warrant requirement, and, indeed, to the requirement of probable cause, is voluntary consent to search. Consent to search is voluntary when it is a true act of will, an unequivocal product of an essentially free or unconstrained choice. Voluntariness is incompatible with official coercion, actual or implicit, overt or subtle. People v. Gonzalez, 39 N.Y.2d 122 (**Board Review 24**).

When an officer is seeking consent to search a person, vehicle, or home, §14-173 of the NYC Administrative Code requires that the officer (**Board Review 25**): (a)(1)—articulate, using plain and simple language delivered in a non-threatening manner, that the person who is the subject of the search is being asked to voluntarily, knowingly, and intelligently consent to the search, and explaining that the search will not be conducted if the person refuses to consent to the search.

Officers are required to offer a business card upon the conclusion of law enforcement activities, including vehicle searches, except in cases when a summons is issued, or an arrest is made. NYPD Administrative Guide, Procedure 304-11 (**Board Review 26**).

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] it is recommended that **Allegation I** be closed as **Substantiated**. § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED] it is recommended that **Allegation M** be closed as **Substantiated**.

§ 87(2)(g) [REDACTED]
[REDACTED], the BWC footage confirms that no officer, including Sgt. Herrera pulled on § 87(2)(b) [REDACTED] handcuffs. It is therefore recommended that **Allegation L** be closed as **Unfounded**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) [REDACTED] has been a party (**Board Review 27**).
- PO Bauman has been a member of service for five years and has been a subject in one CCRB complaint and one allegation, which was not substantiated. § 87(2)(g) [REDACTED]
[REDACTED]
- PO Santos has been a member of service for three years and has been a subject in one CCRB complaint and one allegation, which was not substantiated. § 87(2)(g) [REDACTED]
[REDACTED]
- PO Martin has been a member of service for four years and has been a subject in two CCRB complaints and two allegations, neither of which were substantiated. § 87(2)(g) [REDACTED]
[REDACTED]
- Sgt. Herrera has been a member of service for 11 years and has been a subject in six CCRB complaints and 10 allegations, one of which was substantiated.
 - Case #201304146 involved a substantiated allegation of a frisk. The Board recommended Command Discipline and the NYPD imposed Instructions. § 87(2)(g) [REDACTED]
[REDACTED]

Mediation, Civil, and Criminal Histories

- § 87(2)(b) [REDACTED] declined to mediate this complaint.
- On January 16, 2024, a Notice of Claim inquiry was sent to the New York City Office of the Comptroller (**Board Review 28**). The results will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]
[REDACTED]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 16

Investigator:	<u>Ariana Thomas</u>	<u>Inv. Ariana Thomas</u>	<u>02/15/2024</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Patrick Yu</u>	<u>IM Patrick Yu</u>	<u>02/16/2024</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date